

Smt. Rajeshwari W/O. Shivanand Dandin vs Shri. Shivanand S/O. Durgappa Dandin on 21 June, 2023

Author: Rajendra Badamikar

Bench: Rajendra Badamikar

-1-

CP No. 100052 of 2023

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 21ST DAY OF JUNE, 2023

BEFORE

THE HON'BLE MR JUSTICE RAJENDRA BADAMIKA
CIVIL PETITION NO. 100052 OF 2023

BETWEEN:

SMT. RAJESHWARI
W/O SHIVANAND DANDIN,
C/O: D. G. JOGANNAVAR,
AGED ABOUT 29 YEARS,
OCC: HOME MAKER,
R/O: TEACHERS COLONY,
NEAR LIBRARY HULKOTI,
TQ & DIST: GADAG-582205.

...PETITIONER

(BY SRI. PADMAJA S TADAPATRI, ADVOCATE)

AND:

SHRI. SHIVANAND
S/O DURGAPPA DANDIN,
AGE ABOUT 34 YEARS, OCC: LECTURE,
R/O: JOSHI GALLI,
NEAR KATHARE HOSPITAL,
TQ: ILAKALL,
DIST: BAGALKOT-587125

Digitally
SUJATA signed by
SUBHASH SUJATA
PAMMAR SUBHASH
PAMMAR

...RESPONDENT

(BY SRI. S.C.HIREMATH, ADVOCATE)

THIS CIVIL PETITION IS FILED U/SEC.24 OF CPC, 1908, PRAYING TO PASS AN ORDER TRANSFERRING MC NO. 3/2023 PENDING ON THE FILE OF SENIOR CIVIL JUDGE AND JUDICIAL MAGISTRATE FIRST CLASS, HUNGUND TO PRINCIPAL FAMILY COURT, GADAG.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

-2-

CP No. 100052 of 2023

ORDER

This petition is filed by the petitioner/wife under Section 24 of the Code of Civil Procedure, 1908 (for short, hereinafter referred to as 'CPC') for transferring M.C.No.3/2023 pending on the file of learned Senior Civil Judge and J.M.F.C., Hunagund, to the learned Principal Family Court, Gadag.

2. It is the contention of the petitioner/wife that the marriage between the petitioner and respondent was solemnized on 09.12.2020 in R. Veeramani Sanskrutik Bhavana, Ilkal as per the customs and rituals prevailed in their community. It is also alleged that after the marriage, the petitioner went to her husband's house to lead the happy marital life but she was subjected to ill-treatment all along. Hence, she was compelled to take shelter in her parental house and she was deserted by the respondent/husband. As such she alleged that she is residing in her parental house at Gadag. She further asserts that she has filed a petition for divorce against her husband in M.C.No.199/2022 on the file of learned Principal Family Court, Gadag under Sections 13 (1) (ia) and (ib) of the Hindu Marriage Act, on account of cruelty as well as desertion. It is her contention that in order to counter the same, the respondent/husband has filed a petition in M.C.No.3/2023 before the learned Senior Civil judge and J.M.F.C., Hungund under Section 9 of the Hindu Marriage Act, 1955 for Restitution of the Conjugal Rights. She asserts that she has no means and she is not in a position to travel from Gadag to Hungund and hence, she has sought for transfer of the matter pending in the learned Senior Civil judge and J.M.F.C., Hungun.

3. The petition was seriously objected by the respondent through his counsel.

4. Heard the learned counsel for the petitioner and the learned counsel for the respondent.

5. Learned counsel for the petitioner would contend that the petitioner was all along subjected to ill-treatment which has compelled her to take shelter in her parental house. It is also submitted that the respondent has not bothered to take care of the wife and deserted her willfully, which has compelled her to file a petition for divorce on the ground of cruelty and desertion. She asserted that after she filing a petition for divorce to counter the same, the respondent/husband has filed a petition under Section 9 of the Hindu Marriage Act, 1955, before the learned Senior Civil judge and J.M.F.C., Hungund, for Restitution of Conjugal Rights by making false allegations. Hence, she would contend that in order to avoid conflicting decisions, the petition pending on the file of learned

Senior Civil Judge and J.M.F.C., Hungund, may be transferred to the learned Principal Family Court, Gadag.

6. Per contra, the learned counsel for the respondent would seriously opposes the transfer petition and contended that he is all along ready and willing to accept the petitioner/wife but she has voluntarily deserted him and before service of the notice, he has filed a petition for Restitution of Conjugal Rights and hence seek for dismissal of the petition.

7. Having heard the arguments and perusing the records, it is evident that the marriage was solemnized on 09.12.2020 in R. Veeramani Sanskrutik Bhavan, Ilakal. The allegations made by the respondent/husband in his petition disclose that he was working as a part time lecturer in Hovinahipparigi Village and their he and petitioner resided together. The allegations discloses that they lastly resided together in Hovinahipparigi and hence, it is evidence that both the parties lastly resided within the jurisdiction of Vijayapur.

8. The records further disclose that the petitioner has filed a petition for divorce on the ground of cruelty as well as desertion before the Family Court, Gadag. Subsequently, the husband has filed a petition for Restitution of the Conjugal Rights. The records discloses that the husband has not taken any initiation initially and it appears that only when the wife has filed the petition for divorce, he has filed the petition for Restitution of the Conjugal Rights. Be it as it may be, it is evident that two petitions are pending in two different Courts and there is possibility of conflicting decision emerging and in order to avoid conflicting decisions, it is just and proper to transfer one petition and both the petitions are required to be heard by same Court only.

9. Admittedly, the wife is residing in Gadag. The allegations in the petition filed by the husband disclose that they lastly resided together in Hovinahipparigi, wherein the respondent/husband is serving. The petitioner/wife is shown to be house hold wife and she does not have any means. In case, both the petitions are heard together, the conflicting opinion can be avoided.

10. Looking to these facts and circumstances, the convenience of the wife will prevail, as she has no means of income. The respondent/husband is already working as a part time lectured as per his own contention. Hence, the petition filed by the husband is required to be transferred from learned Senior Civil Judge and J.M.F.C., Hungund, to the learned Principal Judge, Family Court, Gadag, for trial along with M.C.No.199/2022 and hence, the petition needs to be allowed. Accordingly, I proceed to pass the following:

ORDER The petition is allowed.

M.C.No.3/2023 pending on the file of learned Senior Civil Judge and J.M.F.C., Hungund is withdrawn and transferred to the learned Principal Judge, Family Court, Gadag, for trial along with M.C.No.199/2022.

Since both the parties are represented, they are directed to appear before the learned Principal Judge, Family Court, Gadag on 18.07.2023 at 10.30 a.m. without waiting

for any notice.

Send the copy of this order to both the Courts for compliance.

The learned Senior Civil Judge Hungund, is further directed to transmit the records to the learned Principal Judge, Family Court, Gadag, pertaining to M.C.No.3/2023 at the earliest in order to expediate the matter by the Family Court, Gadag.

Sd/-

JUDGE SSP